

of decrees, and decretal Orders, for under this the Master has power to take proceedings, which it was formerly customary to direct him specially to take, in the Decree or Order.

X.

Master may compel production of books, &c., and order advertisements, and proceed as under the "usual directions" in a decree.

Under every Order of reference to the Master, the Master is, unless the Court otherwise orders, to be at liberty to cause the parties to be examined, and to produce deeds, books, papers and writings, as he shall think fit, and to cause advertisements for creditors; and if he shall think it necessary, but not otherwise, for heirs or next of kin, or other unascertained persons, and the representatives of such as may be dead, to be published in the usual forms, or otherwise, as the circumstances of the case may require; and in such advertisements to appoint a time within which such persons are to come in and prove their claims, and within which time, unless they so come in, they are to be excluded the benefit of the decree: and in taking any account of a deceased's personal estate under any Order of reference, the Master is to inquire and state to the Court what part, if any, of the deceased's personal estate is outstanding or undisposed of; and is also to compute interest on the deceased's debts from the date of the decree, and to compute interest on legacies from the end of one year after the deceased's death, unless any other time of payment is directed by the will, but in that case according to the will: and under every Order whereby any property is ordered to be sold with the approbation of the Master, the same is to be sold to the best purchaser that can be got for the same, to be allowed by the Master, wherein all proper parties are to join as the Master shall direct.

Practice compared with that of England.

The above constitute all the Orders in which the principle of Lord Cottenham's Orders of April, 1850, is adopted. Those Orders, with the forms above referred to, are to be found in the *London Jurist* of 27th April, 1850, pages 143 to 151.

The practice here established however differs in some leading features from that of England.

Difference between the "bill" and "claim" not material.

The difference in form between the "Bill" here, and the "Claim" in England, is merely in a few words, and is of no importance. And the practice on the coming on of the motion here, is very similar to the English practice, when the defendant shows cause to the summons which

has been granted. Order, which

One party varies, is this may be answered filed whether the under the fact a hearing being made charge the fence to the will be treated. The Court upon as an be rebutted it seems, the under Order seems one answer, and filed. The cretion to ably be found on the answer whether the summary report position of ferences, to

Another proceeding is except in case or where leave is as *parte*, and reading the on the completely absence is com